WESTERN DIGITAL CONTINGENT WORKER PRIVACY NOTICE

Last Updated: November 12, 2024

Introduction

Western Digital Technologies, Inc. and its subsidiaries and affiliates (together "**Western Digital**," "**we**", "**us"** or **"our"**) is committed to protecting the privacy and security of your personal information. This Privacy Notice ("**Notice**") describes what personal information we collect from Western Digital contingent workers, the purposes for the collection, and to whom we may disclose your personal information.

This Privacy Notice only applies to contingent workers of Western Digital. Contingent workers are current or former temporary worker, independent contractor, and those employed by consulting firms or outsourced service providers retained by Western Digital and that are providing service to or on behalf of Western Digital. This notice does not form part of any contract of employment or other contract to provide services. For information about how we collect and use your information as a consumer, please review our Privacy Center at WesternDigital.com.

It is important that you read this notice, together with any other privacy notice we may provide on specific occasions when we are collecting or processing personal information about you, so that you are aware of how and why we are using such information and what your rights are under applicable law.

As used in this Notice:

- "Processing of personal information" means any operation performed on personal data, such as the collection, recording, storing, using, reviewing, disclosing, transferring, or deleting of personal information.

- "Personal information" means information relating to an identified or identifiable Western Digital contingent worker insofar as that information has been obtained by Western Digital in the context of the Western Digital's contingent worker's actual or potential working relationship with Western Digital. The personal information we may process about you are detailed in the section "The Personal Information That Western Digital Collects".

If you have any questions, you can reach out Western Digital's Data Protection Officer (DPO) by email at privacy@wdc.com.

The Entity That Is Collecting Your Personal Information

The data controller of your personal information is the Western Digital entity you are interacting with as contingent worker (i.e. either Western Digital Technologies, Inc. or one of its subsidiary or affiliate).

How Western Digital Collects Your Personal Information

When authorized or required by applicable local law, Western Digital collects your personal information from the following categories of sources:

- **The Western Digital Contingent Worker and/or Their Employer**. Western Digital collects your personal information from you from various sources, including from you and your employer. Your employer will provide us with your personal information when it seeks to place you at Western Digital or have you support a Western Digital project on behalf of your employer. You submit personal information when you complete any onboarding documents or during interactions with Western Digital employees.
- **Indirectly from the Western Digital Contingent Worker**. Western Digital monitors information on your work computer and professional mobile device when interacting with Western Digital's information and communication systems including Western Digital's applications, as well as any personal devices connected to a work computer and used for professional purposes.
- **Western Digital Employees.** Western Digital employees may provide personal information about you. Examples would include a manager providing performance feedback, or People Support may provide information based on information learned during an internal investigation.

- **Other**. Depending on the applicable local law where you reside, other categories of sources of personal information include internal tracking of the Western Digital's professional email and telephone systems, public agencies, workers' compensation carriers, and law enforcement agencies.

If you want more information about the third parties that may provide your personal information, you can reach out Western Digital's Data Protection Officer (DPO) by email at privacy@wdc.com.

The Personal Information That Western Digital Collects

When applicable and legally permitted, Western Digital will collect various types of personal information about you for the purposes described below, including:

Nature of Personal Information	Examples
Personal Details	• Full name, including surname • Photograph • Next of kin and emergency contact details
Contact Information	• Home address • Work address • Personal home phone number • Work phone number • Mobile phone number • Personal email address • Work email address
Employment-related Information	• Western Digital identification number • Job title, job grade, role, employment status, job details, description of your role • Western Digital manager overseeing your work • Terms of your arrangement, including contract and job status • Western Digital company retaining you, as well as your employer • Office location • Work contact information, such as telephone number and email address, if provided • Work schedule and hours of work, as well as absences • The start and end date of your business relationship with Western Digital • CCTV images and photograph • Voice and audio recordings • Occupational health-related information such as accident reporting • Complaints that you filed or were filed against you, including complaints alleging bullying or harassment, as well as any information discovered during grievance investigation
Monitoring-related Information (Where Permitted by Applicable Laws)	• Computer usage, including files contained on computers, as well as uploading and downloading activities • Internet usage, including browser and search history • IP addresses of your device, as well as any device connected to a Western Digital computer • Emails that you sent or received to the extent permitted by law • Calendar entries

	• Call history to the extent permitted by law • Emails and other documents that refer to you and/or opinions about your performance and conduct to the extent permitted by law • Files stored on your work device or personal devices you use for work • Applications you downloaded to a Western Digital computer, system and building login information, download and upload records

Western Digital may process additional personal information for which it has a legitimate purpose, and it will work diligently to provide notice of such processing as soon as practicable.

Western Digital may collect your personal information that belongs to special categories of data such as:

- disability access and special needs, where strictly necessary and permitted by local applicable law;
- occupational health-related information such as disabilities and accident reporting where strictly necessary and permitted by applicable local law; and
- information about criminal convictions, only when required by applicable local law.

The provision of certain personal information may be necessary or optional. Mandatory data will be marked as such at the moment of collection of your personal information. If you refuse to provide mandatory data, we will not be able to carry out the associated processing.

The Nature of Western Digital's Processing Activities

Western Digital processes your personal information in compliance with applicable data protection laws and where there is a legitimate purpose for doing so.

When you work as contingent worker, Western Digital processes your personal information for the following purposes:

Processing activity	Legal Basis	Data Retention period
Maintaining our relationship with your employer, which includes paying and reimbursing your employer, discussing your performance with your employer, discussing your hours of work with your employer, and our internal analytical assessment of your employer.	Where necessary to perform the contract or to take steps to enter into the contract with the employer To comply with legal obligations To fulfill Western Digital's legitimate interest after taking into account the purpose and need of processing, and balancing the interests of Western Digital with the rights of the applicant Where legally permissible, on your consent	Contingent worker files are maintained for up to 6 years after the termination of their mission, unless otherwise required by applicable local law where you work
Communicating with contingent workers, which includes maintaining contact	To fulfill Western Digital's legitimate interest after taking into account the purpose and	Emails are maintained for 1 year, unless stored in an

information, and communicating with contingent workers	need of processing, and balancing the interests of Western Digital with the rights of the employee Where legally permissible, on your consent	employee file, in which case they are stored for 7 years
Responding to accommodation requests, which includes assessing requests to accommodate contingent workers. **Note:** This may require Western Digital to process sensitive personal information about employees, including their race, ethnicity, gender, or health information.	Where necessary to perform the contract or to take steps to enter into the contract with the employer To comply with legal obligations Where legally permissible, on your consent To fulfill Western Digital's legitimate interest after considering the purpose and need of processing, and balancing the interests of Western Digital with the rights of the employee To fulfill vital interests of Western Digital contingent worker	Contingent worker files are maintained for up to 6 years after the termination of their mission, unless otherwise required by applicable local law where you work
Enforcing Western Digital's legal rights, which includes using personal information in connection with litigation filed by or against Western Digital, reporting potential violations of the law with law enforcement agencies, responding to any request by law enforcement or government agencies, and responding to court orders, subpoenas, or discovery requests, whether or not these requests were made within or outside your country	Where necessary to perform the contract or to take steps to enter into the contract with the employer To comply with legal obligations To fulfill Western Digital's legitimate interest after considering the purpose and need of processing, and balancing the interests of Western Digital with the rights of the employee Where legally permissible, on your consent	Legal records are maintained for 10 years after the resolution of the matter
Manage Western Digital's facilities, which include maintaining the facilities, health and safety obligations, ensuring a safe working environment, assist in case of an emergency	To comply with legal obligations To fulfill Western Digital's legitimate interest after considering the purpose and need of processing, and balancing the interests of Western Digital with the rights of the employee	Health and safety records are maintained for 10 years after they are no longer active records Security access records are maintained for 6 years after they are no longer active

	Where legally permissible, on your consent	
Operating and maintaining Western Digital physical sites and its IT and business systems, which includes responding to IT service requests, monitoring who enters Western Digital properties, CCTV footage, monitoring of IT systems and other communication tools to protect and maintain confidentiality, integrity and security of these systems, ensuring compliance with Western Digital's policies, protecting Western Digital's intellectual property and trade secrets, protecting the personal information of our employees and customers, assisting with investigations and legal proceedings, and preventing unauthorized software on company systems.	To comply with legal obligations To fulfill Western Digital's legitimate interest after considering the purpose and need of processing, and balancing the interests of Western Digital with the rights of the employee	IT security records are maintained for 6 years Business continuity plans are maintained for 3 years after being superseded IT service requests are maintained for 3 years after final resolution Security investigation reports are maintained for 7 years after final resolution Security access records are maintained for 6 years after the record is no longer active
Compliance with local laws, such as conducting statutory reporting and investigating employee or contingent worker complaints, which includes employee relations-type complaints. **Note:** This may require Western Digital to process sensitive personal information about contingent workers, including their race, ethnicity, gender, or health information.	To comply with legal obligations To fulfill Western Digital's legitimate interest after considering the purpose and need of processing, and balancing the interests of Western Digital with the rights of the employee To fulfill vital interests of Western Digital employees and contingent workers	Employee relations files are maintained for 6 years after the final resolution of the matter Records of Ethics and Compliance investigations are maintained for 7 years after the closure of the investigation Regulatory reporting is maintained for current year of report plus 6 years

Western Digital will process your personal information only for one or more of the purposes outlined above, for purposes sent to Western Digital employees in a separate notice, or in other ways that applicable local law may permit.

Who Has Access to Your Personal Information

Your personal information can only be accessed by or disclosed to Western Digital employees who have a need-to-know, and the information they have access to is limited to the personal information that they need to perform their job. Specifically, the following employees within Western Digital will have access to your personal information:

- Procurement and People Support team members;
- Those responsible about making decisions about your retention as a contingent worker, such as the Western Digital management team you work with;
- The managers responsible for engaging with your employer;

- Security personnel to the extent you have had to enter a Western Digital business location; and
- Other employees who have a legitimate business reason for processing your personal information.

Western Digital stores your personal information in various business applications. Your personal information may be accessed by providers of those systems for administrative, technical and operational purposes.

Your personal information will only be shared where necessary with third parties, such as:

- Other corporate entities associated with Western Digital in order to globally manage the business activities of Western Digital;
- Service providers we engage for administrative, technical and operations purposes related to our business activities;
- Your employer in accordance with our business relationship.

Western Digital will not provide your personal information to a third party unless that third party undertakes to: implement and maintain appropriate security measures; comply with applicable local laws; only use your personal information where required and for the purposes for which your personal information was provided by Western Digital; and guarantee at least the same levels of protection for your personal information as required by Western Digital.

Western Digital may provide your personal information to local regulators in order to comply with legal obligations. Your personal information may be provided to law enforcement agencies or to law firms in connection with any legal proceedings or in response to subpoenas or similar requests. Similarly, Western Digital may be under an obligation to disclose your personal information to regulators, courts, the police or local authorities, or in the course of litigation. It may not be possible to notify you in advance about the details of such disclosures. In such cases, Western Digital will use all reasonable efforts to disclose the minimum personal information necessary.

Finally, Western Digital may also provide your personal information to successor businesses in the event of a corporate business transaction, such as a merger, acquisition, joint venture, or financing or sale of company assets.

Where Western Digital Transfers Your Personal Information (International Transfers)

From time to time, Western Digital transfers your personal information outside of your home country to its subsidiaries and affiliates, as well as third parties (e.g., service providers) in the US and elsewhere where there is a business need to do so and for the purposes described above.

Western Digital also transfers your personal information to third parties in Europe and around the world where required by law (e.g., to tax authorities), to protect its legal rights (e.g., to defend litigation, legal advice or audit requirements) or in an emergency (e.g., in a workplace accident where an employee's health or security is at risk).

Where Western Digital transfers your personal information to a country that may not have the same level of privacy protection as your home country Western Digital will ensure that the transfer is covered by appropriate safeguards (for example, by entering into standard contractual clauses as adopted by the European Commission or the UK Data Protection Authority), and will implement measures to act in accordance with applicable data protection laws. If you want more information about the potential third countries where your personal information is transferred and obtain a copy of the associated safeguards, you can reach out Western Digital's Data Protection Officer (DPO) by email at privacy@wdc.com.

Western Digital Security Measures

Western Digital is committed to taking appropriate technical, physical, and organizational measures to protect your personal information against the following: unauthorized or accidental destruction; alteration or disclosure; accidental loss; unauthorized access; misuse; unlawful collection/use; and damage.

Your Rights and How You Exercise Them

Depending on the laws of your jurisdiction, you may have certain rights with respect to your personal information:

Your rights	Scope
Right to access	You have the right to request (i) the confirmation on whether Western Digital processes your personal information or not, (ii) a copy of such personal information, and (iii) information on the use of your personal information by Western Digital (as provided in this Notice).
Right to rectification	You have the right to request the rectification of your personal information if your personal information is obsolete, inaccurate or incomplete.
Right to delete	Under certain circumstances, you have the right to request the deletion of your personal information.
Right to restriction of processing	Under certain circumstances, you have the right to request the restriction of the processing.
Right to portability	Under certain circumstances, you have the right to request a copy of your personal information in a structured, commonly used and machine-readable format and also can request their transmission to another data controller where technically feasible.
Right to object	Under certain circumstances, you have the right to object to our processing of your personal information.
Right to withdraw your consent	You have the right to withdraw your consent when it has been obtained.
Automated individual decision-making	You have the right not to be subject to a decision based solely on automated processing including profiling, which produces legal effects on you or similarly significantly affects you.

Depending on your country of residence, you may have additional local rights with respect to our processing of your personal information.

You also have the right to lodge a complaint before your national data protection authorities. For those in Europe, please see the list and the contact of the data protection authorities **here**. Western Digital does not prohibit applicants from lodging a complaint with the relevant government office if a Western Digital contingent worker has any concerns with the processing of their personal information. Please feel free to directly contact Western Digital before discussing with regulators, so that any issue may be resolved in cases of mistakes.

If you have any questions or wish to exercise your rights, you can reach out Western Digital's Data Protection Officer (DPO) by email at privacy@wdc.com.

Under certain circumstances, Western Digital may ask you for specific information in order to confirm your identity and ensure the exercise of your rights. This is another appropriate security measure to ensure that personal data is not disclosed to an individual who does not have the right to receive it.

We will not discriminate or retaliate against you for exercising any of your privacy rights identified in this Notice.

Changes To This Notice

We may update this Notice from time to time. When we make changes to this Notice, we will change the date at the beginning of this Notice to include the "Last Update" date. If we make material changes to this Notice, we will notify you by email to your registered email address, by prominent posting on our websites, or through other appropriate communication channels as required by applicable local law. All changes shall be effective from the date of publication unless otherwise provided in the notification.

Questions

To ask any questions related to this Notice or to exercise any legal rights that you have related to your personal information, please contact Western Digital's Data Protection Officer (DPO) by email at privacy@wdc.com.

By signing below, I acknowledge that I have read, understand, and consent to Western Digital's processing and transfer, both locally and internationally, of my Personal Information in the manner described in this Notice.

_____ _____

Signature Date

_____

Print Name